

## SC127504 SC127504

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-15

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Case Number: SC127504 Hearing Date: July 15, 2026 Dept: M

CASE NAME: Siddiqui v. Molayem

CASE NO.: SC127504

MOTION: Motion to Require Undertaking Pending Appeal (CCP § 917.9)

HEARING DATE: 7/15/2026

Legal

Standard

Generally, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order. (CCP § 916(a).) Under CCP § 917.1, the perfecting of an appeal of a judgment or order for money or costs not available under CCP section 1033.5 does not stay enforcement of the judgment unless an undertaking is given. (CCP § 917.1(a).) However, where the award is solely for costs, no undertaking is generally required to stay enforcement of the judgment. (CCP § 917.1(d).)

Notwithstanding that exception, CCP section 917.9 provides that the “perfecting of an appeal shall not stay enforcement of the judgment or order in cases not provided for in Sections 917.1 to 917.8, inclusive, if the trial court, in its discretion, requires an undertaking and the undertaking is not given, in any of the following cases...(3) The judgment against appellant is solely for costs awarded to the respondent by

the trial court pursuant to Chapter 6 (commencing with Section 1021) of Title 14." (CCP § 917.9(a)(3).) The purpose of the undertaking is to "mitigate any injustices arising from the costs-only judgment rule." (Quiles v. Parent (2017) 10 Cal.App.5th 130, 145.) In exercising its discretion, the Court may require an undertaking where in circumstances where "the costs judgment is large or the danger of asset dissipation is acute", where the judgment debtor acted "bad faith in managing the underlying litigation", the judgment debtor arranges their "financial affairs to become judgment proof", among other relevant factors. (Id.)

If the Court exercises that discretion, the undertaking shall be in an amount sufficient to cover all damages which the respondent may sustain by reason of the stay in the enforcement of the judgment or order. (CCP § 917.9(b).) The undertaking "shall be conditioned upon the payment of the sums required by the judgment or order appealed from if the judgment or order is affirmed or the appeal is withdrawn or dismissed," and, in such case, "the appellant will pay all damages which the respondent may sustain by reason of the stay in enforcement of the judgment." (CCP § 917.9(c).) "Damages" includes either (1) reasonable compensation for the loss of use of the money or property; or (2) payment of the amounts specified in paragraph (3) of subdivision (a) (i.e., an amount sufficient to cover the cost judgment). (CCP § 917.9(d).)

## ANALYSIS

Plaintiff/Judgment Creditor Ruby

Siddiqui move for an order requiring Defendants/Judgment Debtors George Molayem and Hill Street Jewelers USA Inc. to post an undertaking in the amount of \$769,993.32 (1.5 times the \$513,328.88 attorneys' fees award) or other amount the court deems appropriate as a condition of any stay of enforcement pending appeal of the attorneys' fees-and-costs component of the Second Amended Judgment on Remand entered September 30, 2025.

The Second

Amended Judgment on Remand awarded \$513,328.88 in attorneys' fees under Civil Code section 1717 as an element of costs and provides that the fees are integrated into the judgment. Defendants' pending appeal challenges only this post-remand costs-and-fees component. Thus, Plaintiff demonstrates that the appealed judgment is for costs as contemplated by section 917.9(a)(3).

The Court

has discretion to require an undertaking. The substantial cost award is exactly the type of case the Legislature intended this court to have discretion to order an undertaking. (See *Quiles*, supra, 10 Cal.App.5th at 144-145 [discussing legislative intent, suggesting that the distinction between damages judgments and costs judgments makes little sense in a case where the attorney fee award triples the amount of actual damages; see also fn. 8 suggesting that the legislature could amend the statute to require awards of attorney fees to bond for any award in excess of a fixed amount (e.g., \$50,000, \$100,000)].) Further, an undertaking is warranted to prevent prejudice from further delay and mitigate the risk of dissipation of assets. The dispute began over ten years ago in 2016. (Child Decl., ¶ 3.) Defendants forced Plaintiff to pursue a lawsuit, trial, posttrial enforcement, and now several appeals. Plaintiff also demonstrates that Defendants have engaged in transfers designed to hinder collection, including transfers to the Hess Trust and to Molayem's spouse. (Child Decl., ¶ 5.) Thus, the Court will exercise its discretion to require a bond.

An appropriate undertaking here would be for the full cost award of \$513,328.88. (CCP § 917.9(d)(2).) Plaintiff does not explain why a 1.5 times multiplier would be permitted by section 917.9(d)'s definition of damages. Plaintiff also does not show she would suffer \$769,993.32 in damages for the loss of use of the cost judgment.

Accordingly, the motion is GRANTED. Defendants are required to post an undertaking in the amount of \$513,328.88 within 15 days. If Defendants fails to provide the required undertaking within 15 days after service of the Court's order, the appeal(s) shall not stay enforcement of the attorneys' fees and costs award.